

24SMCV04025 24SMCV04025

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-20

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The court has before it a motion to compel the further deposition of plaintiff and to continue the trial. However, on Tuesday the parties reached an agreement that there will be a second day of deposition and to continue the trial. The motion to compel is therefore MOOT. The stipulation to continue the trial, though, requires the court's approval.

The court agrees that the trial date cannot be maintained. The court is troubled because at the CMC the court told the parties that there would be no continuances absent circumstances that are truly unforeseen and unforeseeable. But the court has to agree that the allegation that the accident has caused plaintiff to become suicidal and in fact attempt suicide multiple times (once before suit was filed) is fundamentally different than simply stating that there were injuries from an auto accident. The case exposure changes, the questions that need to be asked change, the need for experts changes. Defendants contend that they did not foresee that change until recently and that they could not reasonably have been expected to do so. Of course, plaintiff knew, but the fact remains that defendants apparently did not. Given that, it is just not practical to maintain an October trial date and a fact discovery cut off a month from now in light of these major case developments. The court also agrees that good cause has been shown for an additional day of deposition. The motion is therefore GRANTED. The FSC and trial dates are VACATED, and the court will set a TSC for October 19, 2026, at 8:30 am. Pending the TSC, the parties should meet and confer as to when they believe the case will be ready for trial and

their availability. The court gives no assurances as to when the case will be restored to the trial calendar, however. The court cannot just move the trial 90 days or so; the court does not have room on the trial docket for that. Based on the parties' agreement, the discovery cut off dates are to be tied to the new trial date (when set), not the original trial date. The court notes that the parties have agreed on the contours of the second day of deposition. The court expects the parties to abide by their agreement.